



JAMAICA CONSTABULARY FORCE
Diversity Policy and Standard Operating Procedures

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1.0 INTRODUCTION

The nature and scope of law enforcement is such that members of the Jamaica Constabulary Force (JCF) encounter and interact with individuals and groups from a broad spectrum of demographic and philosophical differences. These diverse individuals and groups may be faced with unique circumstances that require a more tactful and empathetic approach by law enforcement professionals. Thus, there is the need to establish protocols aimed at ensuring that all individuals receive high quality, professional service. In so doing the JCF seeks to fulfill the mandate for fair and equitable treatment of all individuals, irrespective of their gender identity, religion, ethnicity, sexual orientation, class, colour, belief or political ideology.

Against this background, the Diversity Policy and Standard Operating Procedure was developed by the JCF to enhance professionalism and intensify awareness of the human rights obligations and responsibilities of members in their interactions with citizens and visitors within our jurisdiction.

This Policy and Standard Operating Procedures shall be adopted by all members as a set of practical guide to minimum standards to be adhered to by all members of the JCF and Rural Police. Any departure from these procedures will be viewed as a breach of discipline.

2.0 PURPOSE

The purpose of this policy is to provide standardized guidelines to members of the JCF in relation to the handling of issues brought to their attention by any individual or group from diverse communities. The aim of the policy is to:

- 2.1 improve public confidence by demonstrating fairness, integrity, tolerance and understanding in dealing with all sections of the community;
- 2.2 show commitment, value and support to every individual by seeking to eliminate all forms of harassment and discrimination;
- 2.3 develop a workforce which empathizes with the community it serves; and
- 2.4 ensure the provision of high quality, professional policing services to all members of the public.

3.0 SCOPE

This policy and standard operating procedure apply to all sworn and unsworn members of the JCF and Rural Police. It encompasses all victims of crimes, accused, witnesses or any concerned citizen who come in contact with the police, irrespective of individuality or

grouping. It also extends to the general community since the JCF has a role to educate the community about prejudice-related violence as part of its crime prevention and reduction strategy.

4.0 ABBREVIATIONS AND ACRONYMS

JCF Jamaica Constabulary Force
SOP Standard Operating Procedures

5.0 DEFINITIONS

- 5.1 Diversity** - This is a concept that recognizes individuals and groups from a broad spectrum of demographic and philosophical differences. It includes the acceptance of persons without prejudice and discrimination, irrespective of their gender identity, religion, ethnicity, sexual orientation, class, colour, belief or political ideology.
- 5.2 Diverse Communities** - Conceptually, diverse communities are made up of groups of persons of various gender identity, ethnicity, religion, sexual orientation, class, colour, political ideology, physical or mental challenges and any other unique feature that adds variety to mainstream society.

6.0 RESPONSIBILITIES

- 6.1** All members of the JCF shall be responsible for complying with this policy and SOP, all forms of discrimination and inequitable treatment towards all members of the public.
- 6.2** It is the responsibility of officers and sub-officers to ensure that:
- 6.2.1** members under their command/supervision are made aware of the provisions of this policy and SOP and are able to deal professionally with issues relating to it.
 - 6.2.2** members who fail to comply with this policy and SOP are held accountable and dealt with in accordance with JCF disciplinary process.
- 6.3** The Divisional Commander shall ensure that all reports/complaints are investigated thoroughly.

- 6.4** It is the responsibility of the ACP i/c National Police College of Jamaica to ensure that this policy and SOP is incorporated and taught at all levels of training.

7.0 POLICY STATEMENT

It is the policy of the JCF that:

- 7.1** all citizens and visitors to Jamaica shall be treated with dignity and respect, irrespective of who they are or the particular grouping to which they belong; and
- 7.2** all reports from any individual or group shall be handled in a manner which reflects the highest level of professionalism, sensitivity and tact.

8.0 STANDARD OPERATING PROCEDURES

The following standard operating procedures are to be strictly adhered to as soon as it is established that any individual or group was victimized because of their gender identity, religion, ethnicity, sexual orientation, class, colour, belief or political ideology:

- 8.1** If the initial report is made at a police station, a sub-officer must be informed immediately. The sub-officer will cause the full report and statement(s) to be collected in private and a report along with the case file forwarded to the Divisional Commander.
- 8.2** The Divisional Commander will cause the file to be assigned to an investigator for full investigation of the report.
- 8.3** The investigator will ensure the privacy and security of the victim and try to bring an early closure to the investigation.
- 8.4** The investigator will update the victim as to the progress of the investigation on a timely basis.
- 8.5** In cases where the initial report is made to members working on the street, the matter must be immediately brought to the attention of the supervisor by secure communication. The supervisor will ensure the safety and security of the victim while he or she is being taken to the station for the report to be taken in privacy. The same protocol at 8.1 to 8.4 will be followed until the conclusion of the case.
- 8.6** At no time should public statements be made or information divulged to the media about the case under investigation, without the approval of the divisional commander.

- 8.7** Members will treat cases of diversity with alacrity, sensitivity and dignity
- 8.8** In cases where the complaint is about members who refuse to take report or treats the complainant in a disrespectful manner, or is tardy in the investigation of the matter, the sub-officer in charge of the station shall report such matter to the divisional commander who will:
- 8.8.1 cause the report/case to be reassigned and
 - 8.8.2 cause the necessary disciplinary action to be taken against the member concerned
- 8.9** The divisional commander will cause a record to be made for statistical purposes of all diversity cases reported, the nature of the reports and the outcome of investigations. This data is to be forwarded to the Statistics Unit on a monthly basis.

9.0 LEGISLATIVE AUTHORITY/GUIDING PRINCIPLES

This policy and standard operating procedure on Diversity shall be read in conjunction with the following:

- [The Jamaican Constitution \(The Charter of Rights and Freedoms\);](#)
- Jamaica Constabulary Force Citizens' Charter;
- Jamaica Constabulary Force Manual for Community Policing Services Delivery;
- Jamaica Constabulary Force Human Rights and Police Use of Force and Firearms Policy;
- The Jamaica Police Manual;
- Jamaica Constabulary Core Values and Principles;
- Jamaica Constabulary Force Ethics and Integrity Policy; and
- Police Public Interaction Policy and Standard Operating Procedures.

10.0 RELEVANT RECORDS AND FORM

The following record must be completed or updated:

- Station Diary

11.0 ROLES AND FUNCTIONS

11.1 Divisional Commander

The Divisional Commander shall:

- 11.1.1 cause the file to be assigned for full investigation;

- 11.1.2 effect the necessary disciplinary actions for members in breach; and
- 11.1.3 cause a record to be made for statistical purposes of all diversity cases reported, the nature of the reports and the outcome of investigations. This data is to be forwarded to the Statistics Unit on a monthly basis.

11.2 Investigating Officer

The Investigating Officer shall:

- 11.2.1 ensure that all matters are investigated swiftly giving sensitivity to victim's privacy and security;
- 11.2.2 keep victims updated on the progress of the investigation on a timely basis; and
- 11.2.3 treat cases of diversity with alacrity, professionalism, sensitivity and dignity.

11.3 Supervisor/Sub-Officer in Charge

The supervisor/sub-officer i/c shall:

- 11.3.1 provide guidance in the investigation of the cases;
- 11.3.2 report members in breach of the policy to the Divisional Commander for disciplinary action;
- 11.3.3 cause the full report and statement(s) to be collected in private and a report along with the case file forwarded to the Divisional Commander; and
- 11.3.4 ensure the safety and security of the victim while he or she is being taken to the station for the report to be taken in privacy, in the case a report was given to members while working on the street.

11.4 Members

All members shall:

- 11.4.1 inform a sub-officer upon initial report after it has been established that any individual or group was victimized because of their gender identity, religion, ethnicity, sexual orientation, class, colour, belief or political ideology; and
- 11.4.2 ensure that all reports of victimization of members of diverse community are recorded in a private and safe location.